

The complaint

Mr B complains that Covea Insurance plc (Covea) has turned down a claim he made on his buildings insurance policy.

What happened

In June 2019, a section of Mr B's lounge ceiling fell down. A plumber came out to look at what had happened. The plumber said the water tank above the ceiling had been leaking and that this may have caused the ceiling to collapse.

Mr B made an escape of water claim on his buildings insurance policy through his broker. Covea appointed a building surveyor to inspect the ceiling damage.

The surveyor didn't think the leaking tank was the cause of the damage. He didn't think the damage he saw was consistent with a leaking cylinder. He said there was no moisture present or staining to the ceiling. He thought the damage had been caused by the ceiling materials breaking down. The surveyor did see some water damage to a bedroom ceiling and walls. But he thought this wasn't linked to the ceiling claim and was caused by a leak from the loft.

Based on the surveyor's report, Covea turned down Mr B's claim for the ceiling damage. It said the damage was caused by wear and tear, which isn't covered by the policy. It said that he could make a new claim for the bedroom damage if he wanted to.

Mr B was unhappy with Covea's decision. His representative asked us to look into his complaint.

Our investigator didn't think Mr B's complaint should be upheld. She thought the surveyor's report showed there were no signs of damp where the ceiling had fallen down. So she didn't think the claim was covered by the escape of water section of the policy. And she thought that the breakdown of the ceiling materials would've happened over a period of time. She thought it was fair for Covea to say this was wear and tear.

Mr B disagreed with our investigator. His representative said that a month had gone by between the ceiling falling in and the surveyor coming out to look at the damage. So the damp had dried by that point. He asked for an ombudsman's decision on Mr B's complaint.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I've decided it was fair for Covea to turn down Mr B's claim. I'll explain why.

I know Mr B and his representative feel strongly that the ceiling came down because of damp. I can understand why they think this. After all, the plumber who first came out said he thought the damage could've been caused by a leaking water tank. It seems the plumber

thought the ceiling collapse could've been down to an escape of water. And damage resulting from an escape of water is covered by Mr B's policy.

Was the damage caused by an escape of water?

But for a claim to succeed, it needs to be shown that the damage happened because of one of the 'insured events' listed in the policy (in this case, the insured event would've been an escape of water). Insurance policies don't usually cover every eventuality. Most policies set out what the insurer will and won't cover.

So for the claim to be accepted, the damage to Mr B's ceiling needed to be caused by an insured event and covered by the policy. Covea instructed its surveyor to look at the damage to find out what'd caused it and if it would be covered. The surveyor decided the ceiling collapse wasn't down to an escape of water and that it was specifically excluded by the policy terms.

I've carefully considered what both Mr B's representative has said and the surveyor's report. I've thought about what the representative's told us about the plumber's initial comments and his own comments about the wetness of the ceiling when it came down. It's unfortunate that there aren't any written comments from the plumber for me to look at.

The surveyor wrote a detailed report. It included photographs of the damage and the testing he carried out to the ceiling during his visit. I've looked carefully at the report. I can see from photos that the surveyor checked moisture readings across the house and especially around the damaged ceiling area. He also took a number of photos of the damage (together with the bedroom damage). The report says:

"A leak from a cylinder is not consistent with the damage we have seen. There is no staining evident and no moisture present. The damage is consistent with a natural breakdown of materials."

Having looked at the photos of the damage and other parts of the property, I think there are a few signs of water damage to other areas. But I can't see evidence of water damage (like staining, or high moisture readings) where the ceiling came down, especially around the wooden beams which have been exposed. And the surveyor had the opportunity to carry out tests which showed there wasn't any moisture present in the damaged area.

Mr B's representative says that the ceiling was wet when it came down and that by the time the surveyor came out, the ceiling had dried. I've thought about this. It looks like there was a delay of about three weeks after the incident before the broker let Covea know about the claim. And Covea asked the surveyor to inspect Mr B's property fairly promptly. So I don't think the delay in inspecting the damage was down to Covea.

Given the time that'd passed, it's possible the ceiling had been wet when it came down. But the pieces that'd fallen had been taken away and there was no opportunity for them to be tested. There's no record of whether the fallen pieces were wet or not. So I don't think there's enough evidence for me to fairly say the ceiling was wet when it came down.

I've thought carefully about the evidence I've seen. It was open to Mr B to get his own expert report about what had caused the damage. But he hasn't done so. This means the only expert written evidence I have to assess says the damage wasn't due to an insured event which would be covered by the policy. I find this evidence persuasive.

Based on what I've seen, I think it's more likely than not that the damage wasn't caused by an escape of water from the leaking tank.

Was it fair for Covea to treat the claim as wear and tear?

The surveyor said the damage was consistent with a natural breakdown of the ceiling materials. I understand the ceiling was made up of plaster and lath and the house was built about 120 years ago. Covea said this breakdown was wear and tear which is excluded by the policy terms.

So I've turned to look at the policy terms. The General Exclusions section of the policy lists the things Covea won't cover. Number 13 of this section says:

*"Loss or damage caused by **wear and tear**, wet or dry rot or **anything which happens gradually**."* (Bold is my emphasis).

In the surveyor's opinion, the ceiling damage was caused by the ceiling materials naturally breaking down. Having considered his report carefully, I think this was the most likely cause of the ceiling coming down. I think, on balance, it's more likely than not that a breakdown of materials would happen over a gradual period. I think it's unlikely that it would've been due to a sudden, one-off event of escape of water.

For this reason, I think it was fair for Covea to decide the claim was excluded by the policy terms.

Overall, while I'm sorry to disappoint Mr B, I don't think the damage was caused by a sudden escape of water. I think it's most likely down to gradual breakdown of the ceiling materials over time. And so, I think it was fair for Covea to turn down Mr B's claim.

My final decision

For the reasons I've given above, my final decision is that I don't uphold Mr B's complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr B to accept or reject my decision before 8 April 2020.

Lisa Barham
Ombudsman